

in trustees (who will not covenant beyond their own acts), to insert a power to charge the *freeholds* for raising the fines; and it would be well to provide that the freeholds and leaseholds might be joined together in the security, and that the loan should precede other charges created by the settlement, and that the *corpus* of the property should be subject to the mortgage, so as to shut out the question of apportionment between the tenant for life and the remainderman.

7. Who shall have the accumulations where renewal cannot be had.— [Where there is an absolute trust for renewal of leaseholds out of the rents and profits over-riding the interest of the tenant for life, but from the unwillingness or incapacity of the lessor no renewal can be obtained, it is the duty of the trustees to make the best arrangement which is practicable for rendering the property permanent for the benefit of the persons successively entitled, either by purchasing the reversion where this can be done on advantageous terms, and with a due regard to the interests of the successive *cestuis que trust*, or by converting the leaseholds and investing the proceeds, allowing the tenant for life only the income of the investments during his life (*a*); but where no such absolute trust for renewal exists, although] a portion of the annual rents and profits may have been destined by the settlor to defray the expenses of renewals, if no renewal can be obtained, the sums which would have been raised will be regarded as a charge which fails of taking effect, and will merge for the benefit of the tenant for life (*b*).

8. Who must compensate the remainderman where no renewal has been made.— If a trustee (*c*), or tenant for life in the situation of a trustee (*d*), fail in his duty to apply the given fund, the remainderman may call for a compensation from

[*(a)* *Maddy v. Hale*, 3 Ch. D. 327; *In re Wood's Estate*, 10 L. R. Eq. 572; *Hollier v. Burne*, 16 L. R. Eq. 163; *Re Barber's Settled Estates*, 18 Ch. D. 624; *Re Lord Ranelagh's Will*, 26 Ch. D. 590.]

[*(b)* *Morres v. Hodges*, 27 Beav. 625; *Richardson v. Moore and Tardiff v. Robinson*, cited *Colegrave v. Manby*, 6 Mad. 82, 83, and reported 27

Beav. 629; *In re Money's Trusts*, 2 Dr. & Sm. 94. See *Colegrave v. Manby*, 6 Mad. 86, 87, 2 Russ. 252; *Bennett v. Colley*, 5 Sim. 181, 2 M. & K. 231; *Browne v. Browne*, 2 Giff. 304.

[*(c)* *Lord Montfort v. Lord Cadogan*, 17 Ves. 485; S. C. 19 Ves. 635; and see *Wadley v. Wadley*, 2 Coll. 11.

[*(d)* *Colegrave v. Manby*, 6 Mad. 72; S. C. 2 Russ. 238.